

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jean Paul Lozada	Team: Squad #09	CCRB Case #: 201705279	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 06/29/2017 9:35 AM	Location of Incident: Atlantic Avenue & Utica Avenue	18 Mo. SOL 12/29/2018	Precinct: 77		
Date/Time CV Reported Thu, 06/29/2017 10:09 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 06/29/2017 10:09 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Steven Tesoriero	19818	960020	077 PCT
2. POM Bercides Medina	14320	955176	077 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Steven Tesoriero	Abuse: Police Officer Steven Tesoriero damaged § 87(2)(b)'s property.	A . Unsubstantiated
B . POM Bercides Medina	Abuse: Police Officer Bercides Medina provided a false name and command to § 87(2)(b)	B . Unsubstantiated

Case Summary

On June 29, 2017, § 87(2)(b) filed this complaint with the CCRB via telephone. On the same day, § 87(2)(b) filed a duplicate complaint in-person at the 77th Precinct stationhouse.

On June 29, 2017, at approximately 9:35 a.m., § 87(2)(b) was pulled over on Atlantic Avenue near Utica Avenue in Brooklyn for driving without wearing a seatbelt. As PO Steven Tesoriero of the 77th Precinct approached § 87(2)(b)'s car, he knocked twice on her trunk above her rear passenger-side wheel, allegedly resulting in dents (**Allegation A**). PO Bercides Medina allegedly told § 87(2)(b) that his name was "Lopez," "Luis," or something other than Medina (**Allegation B**). PO Medina also allegedly said that he worked at the 71st Precinct, although he actually worked at the 77th Precinct. § 87(2)(b) gave PO Medina her documentation, and the officers returned to their vehicle. Through her rear-view mirror, § 87(2)(b) saw PO Medina writing her a summons. The officers returned to § 87(2)(b)'s vehicle, and PO Tesoriero allegedly banged four more times on the same spot with a black object (**Allegation A cont'd**). § 87(2)(b)'s vehicle allegedly sustained four dents less than six inches apart from each other above her rear passenger-side wheel. PO Medina handed § 87(2)(b) her summons, and § 87(2)(b) left the scene. § 87(2)(b) drove to the 71st Precinct stationhouse to file this complaint, but she was told that she was at the wrong stationhouse and was directed to the 77th Precinct stationhouse.

There is no video footage in this case.

Mediation, Civil and Criminal Histories

- Mediation was offered to § 87(2)(b) during her telephone statement on July 12, 2017 and again during her sworn statement on August 1, 2017. § 87(2)(b) rejected mediation § 87(2)(b) [redacted].
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [redacted].
- As of August 24, 2017, § 87(2)(b) has not filed a notice of claim in regards to this incident (Board Review 02).

Civilian and Officer CCRB Histories

- This is the first CCRB complaint in which § 87(2)(b) is involved (Board Review 03).
- PO Steven Tesoriero has been a member of the NYPD for one year and is the subject of one prior CCRB complaint involving a case that is currently open and being investigated by Inv. Eric Rigie (Board Review 04). § 87(2)(g) [redacted].
- PO Bercides Medina has been a member of the NYPD for four years and is the subject of one prior CCRB complaint involving a case that is currently open and being investigated by Inv. Eric Rigie (Board Review 05). § 87(2)(g) [redacted].

Potential Issues

- § 87(2)(b) stated that she first saw the officers parked in the parking lot of a shopping center at the southwest corner of Atlantic Avenue and Schenectady Avenue, and that she was pulled

over in front of this parking lot. However, both PO Tesoriero and PO Medina stated that they were conducting observations from the parking lot of an AutoZone store at the southwest corner of Atlantic Avenue and Utica Avenue. Both the summons written by PO Medina (Board Review 06) and PO Tesoriero's memo book (Board Review 07) list the location of the offense as Atlantic Avenue and Utica Avenue. The preponderance of the evidence therefore suggests that the incident took place on Atlantic Avenue near Utica Avenue, not Schenectady Avenue.

Findings and Recommendations

Allegation A – Abuse of Authority: Police Officer Steven Tesoriero damaged § 87(2)(b)'s property.

§ 87(2)(b) stated that when PO Tesoriero approached the passenger side of her vehicle, she heard him bang twice on her car above the rear passenger-side wheel, but she noted that she did not see this. As the officers returned to her vehicle after writing a summons in their police vehicle, PO Tesoriero allegedly banged on the same spot four more times with an unidentified black object that he was holding in his hand. § 87(2)(b) saw PO Tesoriero bang on her car the second time, and she believed he hit her car with the same black object the first time because the bangs sounded the same. After leaving the scene, § 87(2)(b) noticed four dents less than six inches apart from each other above the rear passenger-side wheel where PO Tesoriero had banged.

Photographs provided by § 87(2)(b) (Board Review 08) show two indentations smaller than her index fingertip on the side of her vehicle.

PO Tesoriero stated that he lightly tapped on § 87(2)(b)'s right rear tail light with his left index finger in order to notify her of his presence in case she had harmful intentions, as he was trained to do in the Police Academy. PO Tesoriero was trained to do this on either the rear tail light or the trunk. PO Tesoriero did not recall how many times he tapped on § 87(2)(b)'s vehicle, but he usually taps once or twice. PO Tesoriero stated that he did not strike § 87(2)(b)'s vehicle with any object he was holding in his hand or with anything other than his index finger. § 87(2)(b)'s rear bumper had scratches and dings, and PO Tesoriero noticed a dent somewhere on the passenger side of § 87(2)(b)'s vehicle. PO Tesoriero did not recognize the damage in the photographs provided by § 87(2)(b). PO Tesoriero did not recall whether he knocked on § 87(2)(b)'s vehicle when he returned to the vehicle after the summons was written. PO Tesoriero stated that he did not cause any damage to § 87(2)(b)'s vehicle when he tapped on it.

PO Medina stated that he did not see PO Tesoriero bang or knock on § 87(2)(b)'s vehicle with his hand or any other object.

§ 87(2)(g)

_____. It is therefore recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation B – Abuse of Authority: Police Officer Bercides Medina provided a false name and command to § 87(2)(b)

§ 87(2)(b) stated that when PO Medina approached her window and stated his name to her, the name he stated was not Medina. In her intake call, § 87(2)(b) stated that she believed PO Medina said his name was “Luis.” In her telephone statement and sworn statement, she stated that she believed he said his name was “Lopez.” § 87(2)(b) noted that she would have remembered if he said his name was PO Medina because her best friend is named Medina. § 87(2)(b) also stated that PO Medina stated that he worked at the 71st Precinct, and that when she went to the 71st Precinct stationhouse to file this complaint, she learned that he in fact worked at the 77th Precinct.

PO Medina stated that when he arrived at § 87(2)(b)'s window, he identified himself to her (“PO Medina, 77th Precinct, shield number 14320”). PO Medina denied stating his name as “Lopez” or anything other than Medina, and he also denied stating that he worked at the 71st Precinct.

When asked what the first thing PO Medina said to § 87(2)(b) was or whether he introduced himself by name to her, PO Tesoriero stated that Atlantic Avenue is a very busy thoroughfare and he therefore could not hear PO Medina. PO Tesoriero stated that PO Medina did not state his name as Lopez or anything other than Medina, and that PO Medina did not say he was assigned to the 71st Precinct or any command other than the 71st Precinct.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g). It is therefore recommended that **Allegation B** be closed as **unsubstantiated**.

Squad: 9

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date